

While this court must apply a strong presumption of correctness to the Hearing Officer's findings, this court must exercise its own independent judgment and may substitute its own findings after giving due respect to the Hearing Officer's findings. In applying its own independent judgment, the court finds that the Hearing Officer's finding are not supported by the weight of the evidence and therefore, finds that the Hearing Officer abused his discretion. Under the independent judgment test, "abuse of discretion is established if the court determines that the findings are not supported by the weight of the evidence." (CCP §1094.5(c).)

DHS Municipal Code §8.40.030.A:

Section 8.40 covered abandoned building registration. Section 8.40.030.A provides that "[a]n owner of a vacant building must register his or her property with the City within 10 days of the building becoming vacant or deemed vacant by the City. If any building shows evidence of vacancy, it shall be deemed vacant and abandoned." Petitioner Diaferio acknowledges he declined to register the Property as vacant, to avoid triggering DHS Municipal Code §17.124.020.

Respondent's Request for Judicial Notice Exhibits #1 and #2 GRANTED.

Petitioner's Writ of Mandate GRANTED.

The Hearing Officer's decision regarding violations of DHS Municipal Code §4.16.010 A.17 and §17.124.030 are vacated and the matter is remanded to the City of Desert Hot Springs to reevaluate its December 27, 2023 Abatement Order in light of the court's ruling.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2507878	GROSSMAN GUIRAGOSSIAN VS BERMUDA DUNES SECURITY ASSOCIATION	MOTION FOR ATTORNEYS FEES BY BERMUDA DUNES SECURITY ASSOCIATION, SYLVIA BARAN

Tentative Ruling: The prevailing defendant on an anti-SLAPP motion is entitled to recover his or her attorney's fees and costs. (CCP § 425.16, subd. (c).) A defendant who partially succeeds on an anti-SLAPP motion is generally considered a prevailing party, "unless the results of the motion were so insignificant that the party did not achieve any practical benefit from bringing the motion." (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 340.) The court has broad discretion when determining whether a party prevailed on an anti-SLAPP motion. (*Ibid.*) Where there is partial success on such a motion, courts look to the practical benefit, either achieved or not achieved, toward the litigation by defendant's motion. (*Maleti v. Wickers* (2022) 82 Cal.App.5th 181, 232; *Moran v. Endres* (2006) 135 Cal.App.4th 952, 955; *City of Colton v. Singletary* (2012) 206 Cal.App.4th 751, 783-784.)

The prevailing defendant on a special motion to strike "shall be entitled" to recover his or her attorney fees and costs, and this fee award is mandatory. (CCP § 425.16, subd. (c); *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1131.) In awarding attorneys' fees under Code of Civil Procedure section 425.16, courts generally apply the lodestar approach, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate

prevailing in the community for similar work. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 639.) To determine what is reasonable “trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses*, *supra*, 24 Cal.4th 1122, 1132, internal citation omitted.) Courts apply the lodestar approach (number of hours reasonably expended multiplied by reasonable hourly rate prevailing in community) in determining the fee award under CCP § 425.16. (*Id.* at p. 1136.) The prevailing defendant is entitled to recover fees incurred in making the motion for attorneys’ fees. (*Id.* at p. 1141.)

It is undisputed that Defendants are the prevailing parties entitled to attorney’s fees and costs. The issue lies in the reasonableness and/or applicability of some of the billing entries. “A fee award under the anti-SLAPP statute may not include matters unrelated to the anti-SLAPP motion, such as “attacking service of process, preparing and revising an answer to the complaint, [or] summary judgment research.” [] Similarly, the fee award should not include fees for “obtaining the docket at the inception of the case” or “attending the trial court’s mandatory case management conference” because such fees “would have been incurred whether or not [the defendant] filed the motion to strike.” (*569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc.*, (2016) 6 Cal. App. 5th 426, at 433, as modified on denial of reh’g (Dec. 29, 2016)

Prelitigation Activities:

Plaintiff objects to Prelitigation Activities, challenging the following entries:

- May 3, 2025: This relates to a review of the initial claim itself and a confidential communication to the client advising the next steps. Given that the entire basis of her claim related to protected conduct, reviewing the claim is clearly related to the Anti-Slapp;
- May 10, 2025: The specific work complained of related to obtaining a defense from the insurer in the event the Complaint was filed regarding the protected conduct. Essentially, Plaintiff claims that getting insurance coverage to defend the claim is unrelated to the claim itself. This is trying to “extract” BDSA from a baseless lawsuit.
- May 20, 2025: This involves reviewing the third claim received in less than a month, and a review of the contract with Plaintiff’s former employer to determine whether the employer was obligated to defend the claim or whether the claim was already released.
- June 17, 2025: Again, after reviewing a new demand from Plaintiff, counsel had to review the demand, update the insurer and advise the client on the next steps.

As noted by Plaintiff, the billing entries do not always say Anti-SLAPP, BDSA [the Association]. Counsel explains that counsel had major concerns over who was providing Plaintiff with ongoing information even after her termination. The Complaint includes statements that third parties were sharing ongoing information with Plaintiff.

Billing Entries Plaintiff Claims are “Mixed-Purpose Billing and Block-Billed Entries:

Block billing is the “practice of making general entries regarding time spent on case, such as “trial prep” for specified number of hours on certain date)”. ([§ 16.121] Block Billing; Cal. Judges Benchbook Civ. Proc. Trial § 16.121.)

Plaintiff seems to critique the entries themselves even though, according to Defendants, the client wants entries by day, not by subject so they are easier to review. Changing the bills after the fact would not allow billing entries to satisfy the business records exception as they would no longer be generated “at or near the time of the act, condition, or event.” (See Ev. Code § 1271(b).)

As noted by Defendants, In *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker*, the Court “observed that the bills submitted by the Association in support of its motion were heavily redacted, sometimes to the point where it could not “tell what’s going on.” (*Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal. App. 5th 252, at 257.) The Court of Appeal affirmed the Court’s fee reduction. Id, at 266. Here, the opposite is true, as the billing entries state exactly what was done and when.

The following are the specific entries challenged by Plaintiff:

- August 18, 2025: Plaintiff sent another demand to BDSA demanding more money and raising new allegations. This is neither block billing, multipurpose or vague as everything related to new and different claims of protected conduct.
- November 10, 2025: The board held a meeting that nearly the entire meeting related to the defense of the Complaint, and the Anti-SLAPP. Afterwards, BDSA directed counsel to have AP Litigation handle the matter. While there is reference to gates, nearly none of the meeting involved that issue.
- November 19, 2025: BDSA received a demand from Rosenberg to defend him in the lawsuit for his protected conduct. While not alleged in the Complaint, Rosenberg at times appeared to be on a Committee and therefore he claimed BDSA needed to indemnify him for his conduct in the lawsuit which, similar to Baran and Negrete, happened in public forums. Moreover, his demand related to being included in same defense as Baran.
- August 26, 2025: BDSA [the Association] concedes part of this entry should not be involved in the Anti-SLAPP. Attorney Knighten does not explain what part of this entry should not be included or whether the whole entry should be deleted. (Defendants’ Reply Brief 6:18)

Duplicate Work:

Plaintiff claims, that attorneys are billed for the same work, without specificity. While the Association agrees Courts can reduce hours based on repetitive work (*569 East County, supra*), that is not what occurred. Here, the only two entries listed by Plaintiff relate to the Reply, which was sent for review to confirm and provide suggestions given each counsels’ different role in the case. (See Knighten Declaration regarding work performed to assist attorney Papaefthimiou.)

Reasonableness in Fees:

The Association objects to the qualifications of Plaintiff to testify regarding whether the time spent was reasonable as she has not established any qualifications as someone with experience on the issue and her testimony, guised as argument, should be excluded. (See Evidence Code Sections 800 and 801.)

This objection is SUSTAINED.

As explained by Defendants, as to the timelines expended on each motion, the timeline of the filing contradicts Plaintiff's argument. Plaintiff filed the lawsuit and the Anti-SLAPP statute does not require service of process before filing the motion. There is no reason by the Association would wait to extract itself, and its directors and committee members from a baseless claim. Indeed, the Association filed an Anti-SLAPP on behalf of Baran, a director, to extract herself from the baseless lawsuit.

Further, the Association had already begun working on the Anti-SLAPP for Defendant Negrete, which raised different issues than Defendant Baran. Plaintiff's filing of the First Amended Complaint made those claims moot, so none of these fees are included. It was the filing of the First Amended Complaint that gave the Association the ability to file an Anti-SLAPP as the conduct complained of as it almost all related to the "MEETING" as defined in First Amended Complaint.

In *569 East County*, , there was a "single cause of action". (*569 East County*, at 430.) In that case, the reasonable hourly rate was \$275, in 2014. Plaintiff doesn't attack either Papaefthimiou or Knighten's qualifications or their billable rate, which are higher than a \$275 from 2014. The Trial Court in that case, undisturbed on the appeal, awarded \$28,290 as reasonable attorney fees for 103.6 hours of work. (*Id.*) Here, despite having two separate Anti-SLAPP motions, and having numerous prelitigation activities, Defendants' hours are approximately the same as in that single-cause-of-action case with no novel issues.

Here, Plaintiff only challenges \$5,027.50 (the bolded fees). The Court cannot do the rest of the work based on general objections.

Motion for Attorney's Fees and Costs GRANTED.

Defendant Baran is awarded attorney fees of \$15,850.00 and costs of \$541.80 for total award of \$16,391.80. Award is to be paid to Association on behalf of Defendant Baran.

Defendant Association is awarded attorney fees of \$28,745.00 (minus any credit for 8.26.25 work) and costs of \$719.95 for a total award To Be Determined.

Case Management Conference regarding service of remaining Defendants confirmed for 7.20.26.